



U.S. Department
of Transportation

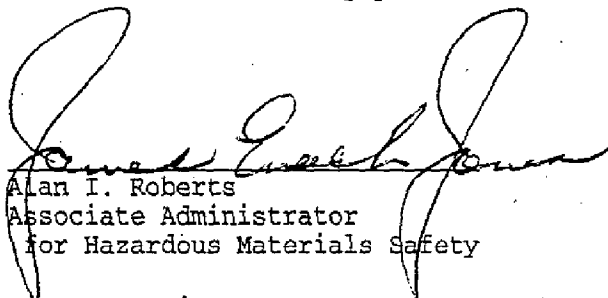
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11093 (EXTENSION)
FIRST REVISION November 16, 1993

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 11093 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 29 1995

(DATE)

Dist: FRA

EXEMPTION HOLDER

APPLICATION DATE

CP Rail (Canadian Pacific Limited)
Montreal, Quebec, CN
(U.S. AGENT: CP Rail System Legal Services
Minneapolis, MN)

May 12, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
Special Programs
Administration

AUG - 9 1995

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 11093
(SECOND REVISION)

EXPIRATION DATE: May 31, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Canadian Pacific Limited, CP Rail Division
Montreal, Quebec, Canada (U. S. Agent: CP Rail
Systems Legal Services, Minneapolis, MN.)
2. PURPOSE AND LIMITATION: This exemption authorizes those
Canadian based employees of CP Rail, who are engaged in
infrequent and limited transportation of hazardous materials
into the United States, to be trained and receive recurrent
training every three years in accordance with Part 9 of the
Transportation of Dangerous Goods (TDG) Regulations in place
of the training, and two-year recurrent training,
requirements of 49 CFR Part 172, Subpart H. This exemption
provides no relief from any regulation other than as
specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-
180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section
172.704(c)(2).
5. BASIS. This exemption is based on CP Rail's application
dated May 12, 1995, submitted in accordance with 49 CFR
107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101): Any, as authorized
for transportation by railroad.
7. SAFETY CONTROL MEASURES: This exemption is limited to those
employees of CP Rail who have been trained in conformance
with Part 9 of the TDG Regulations. Operations using such
employees are limited to direct movements between the United
States/Canada border to terminals located in:

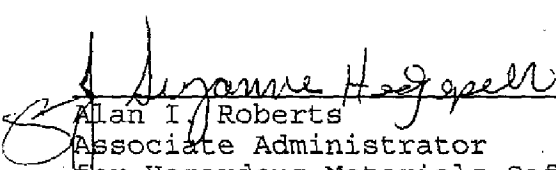
Sumas, Washington; Kingsgate, Idaho; Coutts,
Montana; North Portal, North Dakota; Emerson,
Minnesota; Detroit, Michigan Niagara Falls,
New York; Buffalo, New York, or Newport,
Vermont.

8. SPECIAL PROVISIONS. A copy of this exemption, in its current status, must be maintained at each terminal identified in Paragraph 7 above and must be made available to a DOT representative upon request.

MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: Not as a condition of this exemption.
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials law, 49 U.S.C. Section 5101 et. seq.,
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.
12. REPORTING REQUIREMENTS. Not as a condition of the exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG - 9 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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